



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

AUG 10 2001

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12804

EXPIRATION DATE: August 31, 2001

1. GRANTEE: Air Products and Chemicals, Inc.
Allentown, PA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of a damaged UN1A1 drum containing silicon tetrachloride vapor in a UN11H2 intermediate bulk container (IBC). This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.302(c) in that the marking requirement is waived; and § 173.3(c) in that an IBC is not authorized as a salvage package except as specified herein.
5. BASIS: This emergency exemption is based on the application of Air Products and Chemicals, Inc. dated August 9, 2001, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.

AUG 10 2001

Continuation of DOT-E 12804

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Silicon tetrachloride	8	UN1818	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The prescribed packaging is a 681 liter UN11H2 intermediate bulk container, that has been tested and certified to the packing group II performance level, used as a salvage package for a leaking UN1A1 drum.

b. OPERATIONAL CONTROLS:

1. This exemption authorizes a one-time, one-way shipment from Alcatel in Claremont, NC to Air Products and Chemicals in Hometown, PA. An intermediate stop will be made at the Air Products and Chemicals plant in Durham, NC to verify the integrity of the overpack.

2. Shipment will be made in a motor vehicle owned and operated by Air Products and Chemicals.

8. SPECIAL PROVISIONS:

a. A copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. The marking requirement specified in § 172.302(c) is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

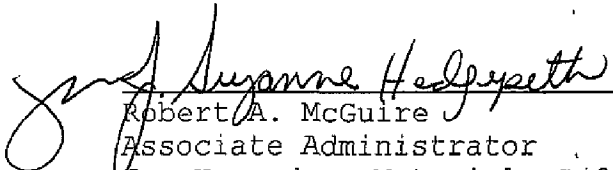
No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

AUG 10 2001

(DATE)


Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DB